

H C J D A 38.

JUDGMENT SHEET
IN THE LAHORE HIGH COURT
LAHORE
(JUDICIAL DEPARTMENT)

Cr. Appeal No.16811 of 2021

Kiran Ehsan v. The State, etc.

Cr. Revision No.21349 of 2021

Rehana Kauser v. Kiran Ehsan, etc

JUDGMENT

Date of hearing **11.06.2025**

Appellant by Mr. Muhammad Akram Qureshi,
Advocate with appellant.

State by Miss Noshe Malik, Deputy Prosecutor
General.

Complainant Rana Arfan Ali and Rana Furqan Hussain,
by Advocates.

MUHAMMAD WAHEED KHAN, J.- This judgment shall decide the instant appeal (Cr. Appeal No.16811 of 2021) filed by appellant, Kiran Ehsan (*against her conviction and sentence*) and Cr. Revision No.21349 of 2021 filed by complainant, Rehana Kauser, for enhancement of sentence of respondent No.1/appellant. As both the matters have arisen out of the same judgment dated 26.02.2021 passed by the learned Addl. Sessions Judge, Pasrur, in private complaint filed u/s 302 PPC by complainant, Rehana Kauser, regarding case FIR No.303/2019 registered u/s 302 PPC at Police Station Sabazpir, District Sialkot, whereby the appellant was convicted under Section 302(b) PPC and sentenced to **Imprisonment for life**. She was also held liable to pay compensation of Rs.2,00,000/- to the legal heirs of deceased Farzana Kauser, which shall be recovered as arrears of land revenue and in case of default, to further undergo simple imprisonment for six months.

2. Rehana Kauser, sister of Farzana Kauser (deceased) filed a private complainant, wherein she narrated the prosecution story as under;

“Farzana Kauser was serving as Head Mistress in Government Girls Primary School Chak Araiyan Pasrur. On 12.11.2019 at 9:30 AM Farzana Kousar made a telephonic call to the complainant-Rehana Kauser and told that accused Kiran Ehsan had administered poison to her by mixing it in tea. The complainant went to Govt. Primary School Chak Araiyan and found Farzana Kausar in a precarious condition. Farzana Kauser told the complainant that she was administered poison in tea by accused-Kiran Ehsan. Rehana Kauser made a telephonic call to her brother Fardoos Alam for shifting of Farzana Kausar to Sialkot Hospital who came there on a car. The complainant and Farzana Kauser sat in the car and they proceeded towards Sialkot hospital. Near Sabazpir Police Station, Farzana Kausar deceased again told them that she was given poisonous tea by accused Kiran Ehsan. At Sabaz Pir, Master Shahbir son of Ghulam Haider and Rana Muhammad Akhtar after receiving information about the occurrence also reached and in presence of complainant and all others Farzana Bibi again told that she was given poisonous tea by teacher Kiran Ehsan explaining that there was some annoyance between them and teacher Kiran Ehsan had extended threats of dire consequences to her. In this regard, the AEO Markaz Sabzpir intervened and reconciled their differences upon which Farzana Kauser became satisfied but accused Kiran Ehsan kept this grudge in her mind and she deceitfully administered tea mixed with poison. The police of Sabazpir police station did not register a case and it was told that after medical examination of Farzana Kauser a case would be registered. The complainant and others alongwith Farzana Kauser reached at Sialkot Hospital, where she told to the doctors that she had been administered poison by Kiran Ehsan accused. After medical examination of Farzana Kauser MLC No.2269/19 was issued from AIM Hospital, Sialkot and her treatment started but she could not survive and died on 12.11.2019 in AIM Hospital, Sialkot.”

After registration of formal FIR on the complaint of Nabi Ahmad, father of Farzana Kauser (deceased), investigation was carried out by the Investigating Agency and it was concluded that the appellant was not found involved in the alleged crime and in consequence of that a cancellation report was prepared and submitted before the learned Area Magistrate, however, it was disagreed. Meanwhile, other daughter of Nabi Ahmad, Rehana Kauser filed a private complaint, in which the appellant was summoned to face trial, indicted her by the learned trial Court, to which she pleaded not guilty and claimed trial. The prosecution in order to prove its case produced as many as thirteen witnesses, two as PWs, whereas remaining eleven as CWs. Ocular account was furnished by complainant Rehana Kauser (PW-1) and one Muhammad Shabbir

(PW-2), whereas medical evidence was tendered by (CW-2) Dr. Tahreem Khazir and (CW-8) Dr. Aysha Iqbal, both initially attended Farzana Kauser, when she was brought to DHQ Allama Iqbal Hospital, Sialkot, whereas postmortem examination of deceased was conducted by one Dr. Javeria Mustafa, who had gone abroad, so, on her behalf CW-6 Dr. Iqra appeared as secondary witness and testified the postmortem report (Ex-CW6/A). Investigation of the case was conducted by Zulfiqar SI (CW-9), whereas the remaining witnesses were of formal in nature. The prosecution after producing certain documents closed its evidence. After completion of prosecution evidence, statement of appellant was recorded u/s 342 Cr.P.C., in which she denied the allegation leveled against her by the prosecution. She neither opted to appear as her own witness u/s 340 (2) Cr.P.C., nor produced any evidence in her defence. After evaluating prosecution evidence available on record, learned trial Court found the prosecution version correct “beyond any shadow of doubt”, which resulted into conviction and sentence of the appellant in the afore stated terms.

3. In support of the instant appeal, learned counsel for the appellant has contended that evidence of the prosecution case is inherently flawed, hence, fails to inspire confidence; that no one witnessed that the appellant allegedly administered poisonous tea and the prosecution case was based on either hearsay or circumstantial evidence, and it cannot be believed without having any independent corroboration; that even otherwise, the testimonies of both the private witnesses are full of contradictions and the same cannot be relied upon to maintain conviction in an offence having capital punishment; that the alleged dying declaration made by the deceased cannot be believed on account of certain legal as well as factual defects; that nothing has been recovered from the appellant during the course of investigation and she was found innocent by the Investigating Agency; that the motive part of the incident has also not been proved by the prosecution and lastly prayed that since the prosecution has miserably failed to prove the case ‘beyond reasonable doubt’ so, the impugned

judgment is not liable to be sustained, hence, by accepting the instant appeal, the appellant be acquitted of the charge.

4. Conversely, learned Deputy Prosecutor General assisted by learned counsels for the complainant, has faithfully defended the impugned judgment with the assertions that both the witnesses produced by the prosecution have fully supported the prosecution story; that when the deceased was brought to hospital in injured condition she got her dying declaration recorded before the Medical Officer in presence of other witnesses, wherein she had specifically named the appellant with the allegation that she had administered poisonous tea to her and this declaration cannot be discarded in any manner; that medical evidence coupled with the report furnished by the Punjab Forensic Science Agency (PFSA) also supports the prosecution version and lastly prayed that since there is no substance in the arguments advanced by learned counsel for the appellant, hence, no exception can be taken to the findings and conclusion arrived at by the learned trial Court, therefore, the appeal filed by the appellant merits dismissal and sentence of the appellant be enhanced sufficiently by awarding death penalty as provided in such like cases.

5. I have heard learned counsels for the parties, perused the record with their assistance and noticed that case of the prosecution is basically structured on the dying declaration of Farzana Kauser, coupled with the medical evidence. Learned Law Officer assisted by learned counsel for the complainant has also candidly admitted that except these pieces of evidence, the prosecution has not adduced any other incriminating material/evidence against the appellant. Dying declaration was based on the oral words of declarant (deceased Farzana Kauser), which she allegedly uttered before four prosecution witnesses, namely, Rehana Kauser (PW-1), Firdous Alam (not produced), Muhammad Shabbir (PW-2) and one Rana Muhammad Akhtar (not produced). As per prosecution case, got reported to the police by one Nabi Ahmad, father of the deceased that on 12.11.2019 at 09:30 a.m. his daughter, Farzana Kauser,

a teacher in Government Primary School Chak Arayan, telephonically informed to his other daughter Rehana Kauser (PW-1) that her co-teacher Kiran Ehsan (appellant) administered her poisonous tea, on which his other daughter Rehana Kausar alongwith his son Firdous Alam, reached at the above said school and they were on their way to civil hospital, Sialkot, when they reached near Sabazpir Police Station, two others i.e. Master Shabbir (PW-2) and Rana Muhammad Akhtar (not produced), also joined them and in the way, his daughter Farzana Kauser, told them that her co-teacher, Kiran Ehsan, had mixed the poison in the tea and made her to drink on account of strained relations. Farzana Kauser, was taken to Civil Hospital, Sialkot, got admitted there, wherein she got her statement recorded before the doctor to the effect that teacher Kiran Ehsan (appellant) administered her poisonous tea. Farzana Kauser, could not survive and passed away on the same day i.e. 12.11.2019 in the hospital. After lodging of FIR, the investigation was pursued and the Investigating Agency concluded that in fact the deceased had committed the suicide, resultantly, a cancellation report was prepared and sent to the learned Area/Judicial Magistrate but the same was disagreed vide order dated 21.09.2020. However, feeling dissatisfied with the outcome of the police investigation, Rehana Kauser daughter of Nabi Ahmad, opted to file a private complaint (Ex-PA), on which learned trial Court had taken cognizance and after summoning the appellant, indicted her, to which she pleaded not guilty and on culmination of trial, the learned trial Court convicted and sentenced her as stated above.

6. The case in hand mainly hinges upon the dying declaration attributed to Farzana Kauser (deceased), which had allegedly made by her before four witnesses named above and also before the Medical Officer, who conducted her medical examination in injured condition on 12.11.2019. A Dying Declaration is an exception to the hearsay rule as it has been made relevant through Article 46 (1) of Qanoon-e-Shahadat Order, 1984 (QSO), which is reproduced herein below;-

“Article 46- Cases in which statement of relevant fact by person who is dead or cannot be found, etc., is relevant.- Statements, written or verbal, of relevant facts made by a person who is dead, or who cannot be found, or who has become incapable of giving evidence, or whose attendance cannot be procured without an amount of delay or expense which under the circumstances of the case appears to the Court unreasonable, are themselves relevant facts in the following cases:

(1) When it relates to cause of death: When the statement is made by a person as to the cause of his death, or as to any of the circumstances of the transaction which resulted in his death, in cases in which the cause of that person's death comes into question. Such statements are relevant whether the person who made them was or was not, at the time when they were made, under expectation of death, and whatever may be the nature of the proceeding in which cause of his death comes into question.”

So, under this provision of law a statement (Dying Declaration) attributed to the deceased, which is allegedly made before the witnesses and when those witnesses depose about such declaration before Investigating Agency or in the Court, their evidence is relevant qua the circumstances which resulted into the death of the deceased, however, it is immaterial whether the declarant was or was not under expectation of death, when such declaration was made. Then there is a provision in Volume III of Rules and Orders of the Lahore High Court, Lahore **(Rules)**. Rule 8 of Chapter 12 of the Rules *ibid*, highlights another rule to the effect that dying declarations under Article 46(1) of QSO, are excluded from the scope of section 162 Cr.P.C. Rule 8 of Chapter 12 of the Rules *ibid* is reproduced as under;-

“Rule 8. Dying declaration excluded from operation of section 162 Cr.P.C.- Dying declarations falling under Article 46(1) of Qanoon-e-Shahadat, 1984 are excluded from the scope of section 162 of the Code of Criminal Procedure.”

To understand this provision of law, it is necessary to discuss the scope of section 162 Cr.P.C. and its background. Section 162 Cr.P.C. basically highlights that how the witness/witnesses is/are examined by the police during the course of investigation and their statements recorded in terms of section 161 Cr.P.C. shall be dealt with. For ready reference it is reproduced as under;-

162. Statements to police not to be signed, use of such statements in evidence:

(1) No statement made by any person to a police-officer in the course of an investigation under this Chapter shall if reduced into writing be signed by the person making it; nor shall any such statement or any record thereof whether in a police-diary or otherwise or any part of such statement or record, be used for any purpose (save as hereinafter provided) at any inquiry or trial in respect of any offence under investigation at the time when such statement was made:

Provided that, when any witness is called for the prosecution in such inquiry or trial whose statement has been reduced into writing as aforesaid the Court shall on the request of the accused, refer to such writing and direct that the accused be furnished with a copy thereof, in order that any part of such statement, if duly proved, may be used to contradict such witness in the manner provided by Section 145 of the Evidence Act, 1872. When any part of such statement is so used, any part thereof may also be used in the re-examination of such witness, but for the purpose only of explaining any matter referred to in his cross examination:

Provided further, that, if the Court is of opinion that any part of any such statement is not relevant to the subject-matter of the Enquiry or trial or that its disclosure to the accused is not essential in the interests of justice and is inexpedient in the public interests, it shall record such opinion (but not the reasons therefor) and shall exclude such part from the copy of the statement furnished to the accused.

(2) Nothing in this section shall be deemed to apply to any statement falling within the provisions of Section 32, clause (1) of the Evidence Act, 1872 or to affect the provisions of Section 27 of that Act."

Under this provision of law, the Investigating Officer, conducting the investigation in a criminal case, was directed that if during the course of investigation, he records the statement of any witness u/s 161 Cr.P.C. that statement shall not be signed by the person making it, nor such statement be used for any purpose during any inquiry or trial in respect of any offence as guided under the 'proviso' attached with this provision of law (section 162 Cr.P.C.). Under the afore referred proviso, any such statement, if duly proved, may be used to contradict the maker of the same (witness) in the manner provided by Article 140 of QSO. So, on account of some constraints in section 162 Cr.P.C. regarding a prosecution witness, above referred Rule 8 of Chapter 12 of Rules (ibid) was incorporated and dying declarations were excluded from the scope of section 162 Cr.P.C. and now any person, whether a Magistrate or a Medical Officer etc, who record such statement (Dying Declaration) will get it signed and that piece of evidence could be used as prosecution

evidence. Meaning thereby that dying declaration is the exception to the hearsay rule but also by virtue of Rule 8 of Chapter 12 of Rules (ibid), it had been excluded from the domain of section 162 Cr.P.C.

7. Although, no hard and fast rule has been highlighted in Article 46 of QSO, vis-à-vis the mode of recording statement of the declarant, who is competent to record the same and whether it could be made before a private person? nevertheless, some guidelines in this regard have been incorporated in Punjab Police Rules, 1934. Rule 25.21 of the same is relevant, which is reproduced as under;-

Rule 25.21 of Police Rules, 1934

25.21. Dying declarations. –

- (1) *A dying declaration shall, whenever possible, be recorded by a Magistrate.*
- (2) *The person making the declaration shall, if possible, be examined by a medical officer with a view to ascertaining that he is sufficiently in possession of his reason to make a lucid statement.*
- (3) *If no magistrate can be obtained, the declaration shall, when a gazetted police officer is not present, be recorded in the presence of two or more reliable witnesses unconnected with the police department and with the parties concerned in the case.*
- (4) *If no such witnesses can be obtained without risk of the injured person dying before his statement can be recorded, it shall be recorded in the presence of two or more police officers.*
- (5) *A dying declaration made to a police officer should, under Section 162, Code of Criminal Procedure, be signed by the person making it.”*

8. Then there is a new legislation in this regard incorporated through an Ordinance LXIV of 2001, Dated 17.11.2001, PLJ 2002 Fd. St. 103., which is reproduced as under;-

“174-A. Grievous injury by burns.-- (1) *where a person, grievously injured by burns through fire, kerosene oil, acid, chemical or by any other way, is brought to a Medical Officer on duty designated by the Provincial Government for this purpose or, such incident is reported to the Officer-in-Charge of a Police Station, such Medical Officer on duty, or, as the case may be, Officer-in-Charge of a Police Station, shall immediately give intimation thereof to the nearest Magistrates. Simultaneously, the Medical Officer on duty shall record the statement of the injured person immediately on arrival so as to ascertain the circumstances and cause of the burn injuries. The statement shall also be recorded by the Magistrate in case the injured person is still in a position to make the statement.*

(2) *The Medical Officer on duty, or, as the case may be, the Magistrate, before recording the statement under sub-section (1), shall satisfy himself that the injured person is not under any threat or duress. The statement so recorded shall be forwarded to the Session Judge and also to the District*

Superintendent of Police and Officer-in-Charge of the Police Station, for such action as may be necessary under this Code.

(3) If the injured person is unable, for any reason, to make the statement, before the Magistrate, his statement recorded by the Medical Officer on duty under sub-section (1) shall be sent in sealed cover to the Magistrate or the trial court if it is other than the Magistrate and may be accepted in evidence as a dying declaration if the injured person expires.]”

(Underline has been provided for emphasis)

Through this legislation, the Medical Officer before whom the patient is brought or if such incident is reported to the Officer-in-Charge Police Station, both the Medical Officer on duty and the Officer-in-Charge Police Station, are bound down to give the intimation in this regard to a nearest Magistrate and at the same time, the Medical Officer shall record the statement of the injured person immediately on arrival, so as to ascertain the circumstances and cause of his injuries and on arrival of the Magistrate, if the patient is still in a position to make a statement, will also record his statement.

8. The august Supreme Court of Pakistan in its judgment passed in case of “MAJEED V. THE STATE” (2010 SCMR 55), had observed that it is well-settled principle of law that if dying declaration is made even before a private person, is free from influence and the persons before whom such dying declaration was made was examined then it becomes substantive piece of evidence and for that corroboration is required and such declaration can be made basis of conviction. While relying on the dictum laid down by the august Supreme Court of Pakistan in case of “FARMANULLAH v. QADEEM KHAN and another” (2001 SCMR 1474), the apex Court gave following guiding principles;-

- (i) *There is no specified forum before whom such declaration is required to be made.*
- (ii) *There is no bar that it cannot be made before a private person.*
- (iii) *There is no legal requirement that the declaration must be read over or it must be signed by its maker.*
- (iv) *It should be influenced free.*
- (v) *In order to prove such declaration, the person by whom it was recorded should be examined.*
- (vi) *Such declaration becomes substantive evidence when it is proved that it was made by the deceased.*
- (vii) *Corroboration of a dying declaration is not a rule of law, but requirement of prudence.*

(viii) *Such declaration when proved by cogent evidence can be made a base for conviction.”*

In another landmark judgment on the subject titled as “Abdul Razik v. The State” (PLD 1965 SC 151), it was held as under;-

“Believing or disbelieving a witness is a question of 'merely ordinary human judgment.' Aids to formation of such judgment are not available in the case of a dying declaration. To accept such statement without considering 'surrounding circumstances' is 'totally inconsistent with safe dispensation of justice.' Accepting such statements on considerations of opinion expressed in precedent cases regarding similar declaration, accompanied by words indicating reliance on some principle of law' held to be 'no less dangerous'; 'careful scrutiny, applied to all physical circumstances appearing from evidence, only way of arriving at conclusion that the statement is 'worth of belief'.”

9. So, keeping in mind the above discussion, I have appreciated the facts of the case in hand, analyzed the evidence and straightway noticed that the machinery of law was set into motion in this case by father of the deceased, Nabi Ahmad, but he not only stayed away from the dock but also did not file the private complaint and it was in fact filed by his other daughter Rehana Kauser (PW-1). The alleged dying declaration was made by deceased Farzana Kauser in critical condition, when she was taken to hospital by four witnesses, out of whom, two were not produced by the prosecution, whereas only Rehana Kauser and Muhammad Shabbir appeared as PW-1 and PW-2 before the learned trial court. While deposing before the learned trial court, both witnesses (PW-1 & PW-2) have reiterated their earlier stance that the declarant Farzana Kauser, apprised them that it was, appellant, Kiran Ehsan, teacher, who had served her poisonous tea. I have straightway observed that the alleged occurrence as per relevant column of FIR took place at 09:30 a.m. on 12.11.2019, whereas the same was reported to the police with a noticeable delay of about twelve hours at 09:15 p.m. (night) on the same day and no plausible explanation whatsoever has been rendered by the complainant regarding this inordinate delay, while lodging the same. I have gone through the Medico Legal Certificate (Ex-CW2/A), according to which the injured arrived in hospital at 09:30 a.m. on 12.11.2019, whereas her medical examination was conducted at 11:27 a.m., meaning

thereby that till 11:27 a.m. her Medico Legal Certificate (MLC) had already been issued by the medical office and this factor is sufficient to raise eyebrows in this context. So, this delay should have been explained being inordinate but surprisingly no explanation has been furnished at all. Unexplained delay in lodging FIR coupled with the fact that at least four closely related persons including Rehana Kauser, were present with her leads to an inescapable conclusion that the FIR was lodged after consultation and due deliberation and at the same time possibility of fabrication of prosecution story and false implication cannot be excluded altogether. I have also perused the postmortem report (Ex-CW6/A) and in its relevant column, time of death of the deceased is mentioned as 4:00/5:00 p.m. I am also mindful of the fact that the complainant in the FIR claimed that Farzana Kauser, had apprised the witnesses about the factum of administering poisonous tea by the appellant, while they were in the way to hospital and it was about 9:30 a.m. and as per Medico Legal Certificate (Ex-CW2/A), the injured arrived in hospital at 9:30 a.m. So, in this background, unexplained and inordinate delay in lodging FIR is an intriguing circumstance, which tarnishes the authenticity and also casts a cloud of doubt on the entire prosecution case.

10. Rehana Kauser (PW-1) also deposed before the learned trial court that the injured was firstly taken to Police Station Sabazpir and Rana Muhammad Akhtar also reached there and the injured Farzana Bibi, stated that she had been served poisonous tea by her co-teacher Kiram Ehsan. The relevant portion of testimony of PW-1 is reproduced as under;-

“Rana Muhammad Akhtar after receiving information about the occurrence had also reached Police Station Sabazpir and in presence of all of us, Farzana Bibi again stated that she was served poisonous tea by teacher Kiran Ehsan.”

But surprising enough neither said Rana Muhammad Akhtar appeared before the learned trial court nor there is any statement of any police official to the effect that Farzana Bibi had made any declaration before him. She (PW-1) also went on to say as under;-

“Then I alongwith others brought Farzana Bibi to civil hospital, Sialkot and got her admitted there; that Farzana Kauser recorded her statement before the doctor that teacher Kiran Ehsan administered her poisonous tea.”

Similarly, Muhammad Shabbir (PW-2) deposed before the learned trial court that he alongwith his nephew Ozair reached at Police Station Sabazpir on motorcycle and Rana Muhammad Akhtar had also reached there. Firdous Alam, Farzana Kauser and Rehana Kauser also arrived there. Farzana Kauser sat outside the main gate of Police Station and Firdous Alam called two police officials there and on asking by the police officials, Farzana Kauser told them that due to strained relationship Teacher Kiran had administered poisonous tea and the AEO had already reconciled in between her and Kiran Ehsan appellant. So, according to this witness the alleged declaration was made by Farzana Kauser in presence of two police officials but as observed earlier, the entire case is silent, at the end of the police, where no police official had written/recorded that statement, nor any police official while deposing before the learned trial court has admitted the factum that any statement was ever made by Farzana Kauser in front of them.

11. So far as the claim of the complainant qua statement of the deceased before the Doctor, who had conducted her medical examination is concerned, I have perused the contents of the Medico Legal Certificate (Ex-CW2/A) and in the relevant column of history, observed as under;-

“Suspecting poisoning at 9:30 a.m. she has been made drug/poison mixed in tea.”

It is neither alleged that this statement was in fact made by Farzana Kauser to the Medical Officer nor it is mentioned that who had prepared the tea or made the injured to drink. Dr. Tehreem Khazir (CW-2), while deposing before the learned trial Court, did not speak a word about any such statement by the deceased (in injured condition). In cross examination, she admitted a suggestion put to her as, correct, in the following terms;-

“It is correct that at the time of medical examination Farzana Kauser, the examinee, stated before me that she has been given drug/poison mixed in Tea.”

But while admitting this, she has not named the appellant in her statement to the effect that at any point of time, the deceased has claimed that it was the present appellant, who had administered her the poisonous tea. I am also mindful of the fact that statement of the aforesaid two PWs i.e. Rehana Kauser (PW-1) and Muhammad Shabbir (PW-2), cannot be taken into consideration in isolation and the Court has to see the other attending facts, circumstances of the case and evidence available on record. I have gone through the Medico Legal Certificate (Ex-CW2/A) and also the testimony of PW-8 Dr. Aysha Iqbal, who in the relevant column observed as under;-

“Patient is a school teacher and according to the patient, one of the fellow teachers gave her unknown poison mixed in tea.”

Again in the testimony of this witness (PW-8), name of the appellant as an accused is not figured therein. After postmortem examination, following samples were procured and sent for forensic analyses;-

- (i) Blood
- (ii) Stomach with contents
- (iii) Small and large intestines.

And as per report (Ex-PC) furnished by the PFSA, drug/poisons were not detected in blood and stomach contents in item # 01.

12. The epitome of the above discussion is that pre-consultation and due deliberation on part of the prosecution witnesses cannot be ruled out keeping in mind the fact that FIR was lodged with an inordinate delay of about twelve hours despite the fact that the witnesses alongwith deceased Farzana Kauser (injured at that time) themselves visited the Police Station, the injured was medically examined much earlier before lodging the FIR, number of witnesses before whom the declarant (Farzana Kauser) made her dying declaration stayed away from the dock including her real brother Fidous Alam and the testimony of PW-1 & PW-2 does not ring true and is too far to stand to reason, hence, no intrinsic worth

and probative value can be attached to it. The two Medical Officers (CW-2 and CW-8) did not name the appellant, while writing down the brief history of the case and as observed in supra paragraph No.8, both i.e. the Medical Officer, who firstly attended the deceased in injured condition as well as the Officer-in-Charge Police Station (as per prosecution case the injured was firstly taken to Police Station) have not fulfilled their statutory duty/obligation imposed upon by section 174-A of Cr.P.C.

13. So, the conclusion is inescapable and irresistible that the prosecution has failed to prove its case 'beyond reasonable doubt' hence, by **allowing** the instant appeal, appellant **Kiran Ehsan**, is **acquitted** of the charge. She is on bail, so, her surety stands discharged from the liability of bail bond.

14. So far as Criminal Revision No.21349 of 2021 for enhancement of sentence of the appellant/respondent No.1 filed by the complainant is concerned, since the prosecution has failed to prove its case against the appellant/respondent No.1 as I have discarded the evidence relied upon by the prosecution; as a natural corollary, this petition having no merits is **dismissed** accordingly.

(MUHAMMAD WAHEED KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE